service charge even though the application is later withdrawn or rejected.

(Sec. 32, 41 Stat. 450; 30 U. S. C. 189)

DOUGLAS MCKAY,
Secretary of the Interior.

SEPTEMBER 7, 1955.

[F. R. Doc. 55-7362; Filed, Sept. 12, 1955; 8:51 a. m.]

[Circular No. 1931]

PART 195—SODIUM PERMITS AND LEASES: USE PERMITS

REWARD FOR DISCOVERY; USE PERMITS FOR ADDITIONAL LANDS

Sections 195.12 (a) and 195.26 (b) are amended to read as follows:

§ 195.12 *Reward for discovery.* (a) A permittee who discovers valuable sodium deposits in the land before the permit expires is entitled to a preference right lease of all or part of the lands in the permit, in a reasonably compact form as provided in § 195.3. An application for a preference right lease must be filed in duplicate in the appropriate land office not later than 30 days after the permit expires. The application must describe the lands desired, show any change in the information contained in the application for permit, specify fully the extent and mode of occurrence of the deposits as disclosed by the prospecting work, and show that valuable sodium deposits were discovered before the permit expired. The application should be accompanied by the rental for the first year of the lease, at the rate of 25 cents per acre or fraction thereof. The lease will be on Form 4–1134, and will be dated the first day of the month following the date of the decision notifying the applicant that he is entitled to a preference right lease, unless otherwise specified therein. If the permit expires and the application for lease is finally rejected, royalty for the deposits mined will be charged at the permit rate and such mining will not constitute a trespass.

§ 195.26 *Use permits for additional lands.* * * *

(b) Applications for permits to use additional land shall be filed in the appropriate land office. A filing fee of $10, which will be retained as a service charge in any event, must accompany each application. Such applications must state why the additional land is necessary, describe the land in accordance with § 195.17 (a) (2), and state whether it is unoccupied and nonmineral. The application must also contain an agreement to pay the annual charge prescribed in the permit. Use permits will be issued on Form 4–1135 and dated as of the first day of the month after its issuance unless the applicant requests that it be dated the first day of the month of issuance.

(Sec. 32, 41 Stat. 450; 30 U. S. C. 189)

DOUGLAS MCKAY,
Secretary of the Interior.

SEPTEMBER 7, 1955.

[F. R. Doc. 55-7361; Filed, Sept. 12, 1955; 8:51 a. m.]

Appendix C—Public Land Orders

[Public Land Order 1211]

[Misc. 1768823]

NORTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 8160 OF JUNE 12, 1939, WHICH ESTABLISHED LEGION LAKE MIGRATORY WATERFOWL REFUGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8160 of June 12, 1939, which reserved all lands owned or controlled by the United States within the following-described area in North Dakota for use of the Department of Agriculture as a refuge and breeding ground for migratory birds and other wildlife, known as the Legion Lake Migratory Waterfowl Refuge, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 151 N., R. 91 W.,
Sec. 19;
Sec. 30, lots 1, 2, NE¼, E½NW¼, and NE¼SW¼.
T. 151 N., R. 92 W.,
Sec. 25, E½NE¼.

The lands are acquired lands of the United States under the primary jurisdiction of the Department of the Army, and are not subject to the provisions of the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

ORME LEWIS,
Assistant Secretary of the Interior.

SEPTEMBER 6, 1955.

[F. R. Doc. 55-7337; Filed, Sept. 12, 1955; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 31]

[346.11]

CUSTOMHOUSE BROKERS

NOTICE OF PROPOSED RULE MAKING

In view of the order of the Secretary of the Treasury dated January 9, 1953 (31 CFR 14.1–14.5; 18 F. R. 225), by which the Committee on Practice and the Office of Attorney for the Government were abolished and the powers, functions, and duties theretofore exercised and performed by the Committee on Practice and the Attorney under Part 11 of Subtitle A of Title 31, Code of Federal Regulations (relating to customhouse brokers), were conferred upon and assigned to the Commissioner of Customs, notice is hereby given, pursuant to section 4 of the Administrative Procedure Act (5 U. S. C. 1003), that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Customs with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Customs, Washington 25, D. C., within the period of 45 days from the date of publication of this notice in the FEDERAL REGISTER. No hearing will be held. The proposed regulations are to be issued under the authority of R. S. 161, 251, secs. 624, 641, 46 Stat. 759, as amended; 5 U. S. C. 22, 19 U. S. C. 66, 1624, 1641.

The regulations are proposed to supersede the present regulations relating to customhouse brokers which are contained in §§ 11.1 to 11.14, inclusive, of Title 31, Code of Federal Regulations, and Department Circular 559 and supplements. Revision is proposed to be made of certain provisions in the interest of clarity and efficiency.

It is proposed that the Treasury decision promulgating the new regulations will read as set forth below:

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: September 6, 1955.

DAVID W. KENDALL,
Acting Secretary of the Treasury.

By an order of the Secretary of the Treasury dated January 9, 1953 (31 CFR 14.1–14.5; 18 F. R. 225), the powers, functions, and duties theretofore exercised and performed by the Committee on Practice and the Attorney for the Government under Part 11 of Title 31, Code of Federal Regulations (relating to customhouse brokers), were conferred upon and assigned to the Commissioner of Customs.

In pursuance of that order, the Customs Regulations are amended by adding a new Part 31 reading as follows:

Sec.
31.1 Scope of part.
31.2 Licenses for customhouse brokers required.
31.3 Definitions.
31.4 Application for license; investigation and examination.
31.5 Issuance or denial of license.
31.6 Other representation by customhouse brokers.
31.7 Licenses for more than one customs district.
31.8 License, when not required.
31.9 Books and papers.
31.10 Other duties and obligations of customhouse brokers.
31.11 Revocation or suspension of licenses.
31.12 Cancelation of licenses.
31.13 Licenses issued under prior acts of Congress.
31.14 Appeal from the Secretary's decision.
31.15 Records of the Commissioner.

AUTHORITY: Sections 31.1 to 31.15 issued under R. S. 161, 251, secs. 624, 641, 46 Stat. 759, as amended; 5 U. S. C. 22, 19 U. S. C. 66, 1624, 1641.